

Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003

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Rule CITIZENSHIP-REGISTRATION-OF-CITIZENS-AND-ISSUE-OF-NATIONAL-IDENTITY-CARDS-RULES-2003 of 2003

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Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003

Published vide Notification G.S.R. 937(E), dated 10.12.2003, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 10.12.2003.

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No. G.S.R. 937 (E), dated 10th December, 2003. - In exercise of the powers conferred by sub-sections (1) and (3) of section 18 of the Citizenship Act, 1955 (57 of 1955), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement. - (1) These rules may be called The Citizenship (Registration of Citizens and Issue of

National Identity Cards) Rules, 2003.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions. - In these rules, unless the context otherwise requires,-

(a)

"Act" means the Citizenship Act, 1955 (57 of 1955);

(b)

"Chief Registrar of Births and Deaths" means the Chief Registrar of Births and Deaths appointed under the Registration of Births and Deaths Act, 1969 (18 of 1969

);

(c)

"Citizen" means the Citizen of India in terms of the Constitution of India and provisions of the Act;

(d)

"Director of Citizen Registration" means the Director of Census in a State or Union territory appointed by the Central Government under the Census Act, 1948 (37 of 1948

), who shall also function as the Director of Citizen Registration in that State, or as the case may be, in the Union territory;

(e)

"District Register of Indian Citizens" means the register containing details of Indian citizens usually residing in the district;

(f)

"District Registrar of Citizen Registration" means the District Magistrate of every revenue district, by whatever name known, who shall act as the District Registrar of Citizen Registration;

(g)

"Local Register of Indian Citizens" means the register containing details of Indian citizens usually residing in a village or rural area or town or ward or demarcated area (demarcated by the Registrar General of Citizen Registration) within a ward in a town or urban area;

(h)

"Local Registrar of Citizen Registration" means a local officer, or a revenue officer, appointed by the State Government at the lowest geographical jurisdiction, that is to say, of a village or rural area or town, or ward or demarcated area (demarcated by the Registrar General of Citizen Registration) within a ward in a town or urban area, who shall function as Local Registrar for the purpose of preparation of Local Register of Indian Citizens;

(i)

"National Identity Card" means the identity card issued under rule 13;

(j)

"National Identity Number" means a unique identity number allotted to every Indian citizen by the Registrar General of Citizen Registration, India;

(k)

"National Register of Indian Citizens" means the register containing details of Indian citizens living in India and outside India;

(l)

"Population Register" means the register containing details of persons usually residing in a village or rural area or town or ward or demarcated area (demarcated by the Registrar General of Citizen Registration) within a ward in a town or urban area;

(m)

"Registrar General of Citizen Registration" means the Registrar General, India, appointed under the Registration of Births and Deaths Act, 1969 (18 of 1969

), who shall also function as the Registrar General of Citizen Registration, India;

(ma)

["Schedule" means a Schedule appended to these rules;]

(n)

"State Register of Indian Citizens" means the register containing details of Indian Citizens usually residing in the State;

(o)

"Sub-district or Taluk Registrar of Citizens Registration" means the Sub-district Magistrate or Taluk Executive Magistrate of every sub-district or taluk, by whatever name known, as the case may be, who shall function as Sub-district or Taluk Registrar of Citizen Registration;

(p)

"Sub-district Register of Indian Citizens" means the register containing details of Indian Citizens usually residing in a taluk, or by whatever name known, of the sub-district.

3.

National Register of Indian Citizens. - (1) The Registrar General of Citizen Registration shall establish and maintain the National Register of Indian Citizens.

(2)

The National Register of Indian Citizens shall be divided into sub-parts consisting of the State Register of Indian Citizens, the District Register of Indian Citizens, the Sub-district Register of Indian Citizens and the Local Register of Indian Citizens and shall contain such details as the Central Government may, by order, in consultation with the Registrar General of Citizen Registration, specify.

(3)

The National Register of Indian Citizens shall contain the following particulars in respect of every citizen, namely:-

(i)

Name;

(ii)

Father's Name;

(iii)

Mother's Name;

(iv)

Sex;

(v)

Date of birth;

(vi)

Place of birth;

(vii)

Residential address (present and permanent);

(viii) Marital status-if ever married, name of the spouse;

(ix)

Visible identification mark;

(x)

Date of registration of citizen;

(xi)

Serial number of registration; and

(xii)

National Identity Number.

(4)

The Central Government may, by an order issued in this regard, decide a date by which the Population Register shall be prepared by collecting information relating to all persons who are usually residing within the jurisdiction of Local Registrar.

(5)

The Local Register of Indian Citizens shall contain details of persons after due verification made from the Population

Register.

4.

Preparation of the National Register of Indian Citizens. - (1) The Central Government shall, for the purpose of National Register of Indian Citizens, cause to carry throughout the country a house-to-house enumeration for collection of specified particulars relating to each family and individual, residing in a local area including the citizenship status.

(2)

The Registrar General of Citizen Registration shall notify the period and duration of the enumeration in the Official Gazette.

(3)

For the purposes of preparation and inclusion in the Local Register of Indian Citizens, the particulars collected of every family and individual in the Population Register shall be verified and scrutinized by the Local Registrar, who may be assisted by one or more persons as specified by the Registrar General of Citizen Registration.

(4)

During the verification process, particulars of such individuals, whose citizenship is doubtful, shall be entered by the Local Registrar with appropriate remark in the Population Register for further enquiry and in case of doubtful citizenship, the individual or the family shall be informed in a specified proforma immediately after the verification process is over.

(5)

(a)

Every person or family specified in sub-rule (4), shall be given an opportunity of being heard by the Sub-district or Taluk Registrar of Citizen Registration, before a final decision is taken to include or to exclude their particulars in the National Register of Indian Citizens.

(b)

The Sub-district or Taluk Registrar shall finalize his findings within a period of ninety days of the entry being made, or within such reasonable extended time for which he shall record the reasons in writing.

(6)

(a)

The draft of the Local Register of Indian Citizens shall be published by the Sub-district or Taluk Registrar, for inviting any objections or for inclusion of any name or corrections for the family or individual particulars collected and proposed to be finally entered in the National Register of Indian Citizens.

(b)

Any objection against a particular entry or for inclusion of a name, or corrections, if any, in the Local Register of Indian Citizens may be made within a period of thirty days from the date of publication of the draft of the Local Register of Indian Citizens, spelling out the nature and reasons for the objection in such form as may be specified by the Registrar General of Citizen Registration.

(c)

Subject to the provisions contained in clause (a) of sub-rule (5), the Sub-district or Taluk Registrar shall consider such objections and summarily dispose off the same within a period of ninety days, and thereafter submit the Local Register of Indian Citizens so prepared to the District Registrar of Citizen Registration who shall cause the entries in the Local Register of Indian Citizens, to be transferred to the National Register of Indian Citizens.

(7)

(a)

Any person aggrieved by the order of the Sub-district or Taluk Registrar under sub-rule (5) or sub-rule (6), may prefer an appeal within thirty days from the date of such order, to the District Registrar of Citizen Registration.

(b)

The District Registrar of Citizen Registration shall take a final decision, after giving an opportunity of being heard to the person so aggrieved, within a period of ninety days from the date of appeal.

(c)

In case the appeal is allowed, the particulars shall be entered in the National Register of Indian Citizens.

[4-A. Special provisions as to National Register of Indian Citizens in State of Assam - (1) Nothing in rule 4 shall, on and after the commencement of the citizenship (Registration of Citizens and Issue of National Identity Cards) Amendments Rules, 2009, apply to the State of Assam.

(2)

The Central Government shall, for the purpose, of the National Register of Indian Citizens in the State of Assam, cause to carry out throughout the State of Assam for preparation of the National Register of Indian Citizens in the State of Assam by inviting applications from all the residents, for collection of specified particulars relating to each family and individual, residing in a local area in the State including the citizenship status based on the National Register of Citizens 1951 and the [electoral rolls upto the midnight of the 24th day of March, 1971].

(3)

The Registrar General of Citizens Registration shall notify the period and duration of the enumeration in the Official Gazette.

(4)

The manner of preparation of the National Register of Indian Citizens in the State of Assam shall be such as specified in the Schedule appended to these rules.]

5.

Officials of the Central Government, State Governments and local bodies to assist the Registrar General of Citizen Registration. - Every official of the Central Government, State Government, local bodies or their undertakings shall assist the Registrar General of Citizen Registration or any person authorised by him in this behalf, in preparation of the database relating to each family and every person, and in implementing the provisions of these rules.

6.

Initialization of National Register of Indian Citizens. - (1) The Registrar General of Citizen Registration shall, by order, notify the date on which the National Register of Indian Citizens shall be initialised throughout the country.

(2)

The order made under sub-rule (1) may provide for the initialization period specified by the Registrar General of Citizen Registration for establishment of the National Register of Indian Citizens.

(3)

Every individual must get himself registered with the Local Registrar of Citizen Registration during the period of initialization as specified under sub-rule (2).

7.

Head of family and individual to act as informant. - (1) It shall be compulsory for every citizen of India to assist the officials responsible for preparation of the National Register of Indian Citizens under rule 4 and get himself registered in the Local Register of Indian Citizens during the period of initialization.

(2)

It shall be the responsibility of the head of every family, during the period specified for preparation of the Population Register, to give the correct details of name and number of members and other particulars, as specified in sub-rule (3) of rule 3, of the family of which he is the head.

(3)

It shall be the responsibility of every citizen to register once with the Local Registrar of Citizen Registration and to provide correct individual particulars to that authority.

(4)

In the case of dependents, such as minor who has not attained the age of eighteen years, or who is disabled, the responsibility of reporting the particulars under this rule shall be of the head of the family:

Provided that in so far as inmates of institutions, such as orphanages, old age homes, mental asylums are concerned, the responsibility for providing the requisite details shall lie with the head of the institution.

8.

Power of District Registrar, Sub-district or Taluk Registrar or Local Registrar of Citizen Registration to obtain information.

- The District Registrar, Sub-district or Taluk Registrar or the Local Registrar of Citizen Registration may, by order, require any person to furnish any information within his knowledge in connection with the determination of citizenship status of any person and the person required to furnish information shall be bound to comply with such requisition.

9.

Procedure as to making of entries in National Register of Indian Citizens. - The Registrar General of Citizen Registration may, by order, specify the procedure to be followed in preparation of the National Register of Indian Citizens and disposal of claims and objections with regard to family and individual particulars proposed to be entered in that Register.

10.

Deletion of name and particulars from National Register of Indian Citizens. - (1) The name and particulars of a citizen may be removed from the National Register of Indian Citizens by an order of the Registrar General of Citizen Registration or any officer authorised by him in this behalf in the event of-

(i)

death of the person; or

(ii)

the person ceasing to be an Indian citizen under section 8 of the Act; or

(iii)

revocation of Indian citizenship under section 9 of the Act; or

(iv)

the particulars provided by the individual or the family found to be incorrect subsequently, thereby affecting the citizenship status of the person.

(2)

It shall be the duty of the Indian citizen concerned to inform the District Registrar of Citizen Registration, within a period of thirty days, about the cessation of his Indian citizenship under clause (ii) of sub-rule (1);

(3)

In the event of an order under sub-rule (1), the person concerned, or in the event of his death his nearest relative, shall be duly informed about the deletion of any entry from the National Register of Indian Citizens:

Provided that any person aggrieved by the order of any authorised officer may prefer an appeal against such order to the Authority within a period of thirty days of such order.

(4)

The appeal under sub-rule (3) shall be disposed off, after giving to the appellant an opportunity of being heard, and produce any documentary or oral evidence in support of his claim.

11.

Maintenance and updating of National Register of Indian Citizens. - The Registrar General of Citizen Registration shall cause to maintain the National Register of Indian Citizens in electronic or some other form which shall entail its continuous updating on the basis of extracts from various Registers specified under the Registration of Births and Deaths Act, 1969 (

18 of 1969

) and the Act.

(2)

It shall be the responsibility of the head of each and every family to ensure that any event of birth or death occurring in the family has been duly entered in, or deleted from, the Local Register of Indian Citizens.

(3)

The Chief Registrar of Births and Deaths and all other officials engaged in the registration of births and deaths shall assist the Registrar General of Citizen Registration in updating the National Register of Indian Citizens as required under sub-rule (1).

12.

Modification of entries in National Register of Indian Citizens. - The Sub-district or Taluk Registrar may, on an application made by the concerned person and after due verification, authorise the modification of any entry in respect of the following particulars in National Register of Indian Citizens, namely:-

(a)

change of name; or

(b)

the name of the applicant's parent in case his status has been altered by adoption under the relevant laws; or

(c)

change of residential address; or

(d)

change of marital status; or

(e)

change of sex.

13.

Issue of National Identity Cards. - The Registrar General of Citizen Registration, or any officer authorised by him in this behalf, shall issue the National Identity Card to every citizen whose particulars are entered in the National Register of Indian Citizens under sub-rule (3) of rule 3.

14.

National Identity Cards to be Government property and responsibility of citizens to keep them properly. - (1) The National Identity Card shall be the property of the Central Government.

(2)

No person shall wilfully destroy, alter, transfer or use in any form the National Identity Card, except for the lawful purposes.

(3)

On the happening of any of the events specified under sub-rule (1) of rule 10, the National Identity Card shall be surrendered, by the citizen concerned or his nearest relative, as the case may be, to the Registrar General of Citizen Registration or any other authorised officer acting on his behalf.

(4)

In the event of a loss of the National Identity Card, it shall be the duty of the citizen or his nearest relative, as the case may be, to report the matter immediately to the nearest police station and the concerned Authority.

15.

Designation of National Registration Authority and officers. - (1) On and from the date of commencement of these rules, the Registrar General, India shall be designated as the Registrar General of Citizen Registration, India who shall also function as such for the purposes of these rules.

(2)

The Central Government may designate-

(a)

one or more officers as Additional or Joint or Deputy Registrar General of Citizen Registration and such other officers and staff as may be required; and

(b)

an officer as a Director, and one or more officers as Joint Director, Deputy Director, Assistant Director of Citizen Registration for each of the States and the Union territories alongwith requisite support staff, to assist the Registrar General of Citizen Registration in discharging the functions and responsibilities under these rules.

(3)

The State Government shall notify a State Co-ordinator of National Registration not below the rank of a Secretary in the State Government or equivalent.

16.

Supervision and Control of Registrar General of Citizen Registration over District, Sub-district or Taluk and Local Registrars of Citizen Registration. - (1) The State Governments shall designate an officer or a person as Local Registrar of Citizen Registration for each lowest geographical jurisdiction, that is to say, of a village or rural area or town, or ward or demarcated area (demarcated by the Registrar General of Citizen Registration) within a ward in a town or urban area who shall function as Local Registrar for the purpose of preparation of Local Register of Indian Citizens.

(2)

Every Local Registrar of Citizen Registration shall function under the overall supervision of the Sub-district or Taluk Registrar of Citizen Registration.

(3)

Every Sub-district or Taluk Registrar of Citizen Registration shall function under the overall supervision of the District Registrar of Citizen Registration.

(4)

For the purposes of implementing and carrying out the provisions of these rules, the District Registrar, the Sub-district or Taluk Registrar and the Local Registrar of Citizen Registration shall be under the supervision and control of the Registrar General of Citizen Registration.

(5)

The Registrar General of Citizen Registration or any officer authorised by him at any time may call for any records for examination, and issue directions regarding inclusion or exclusion of any individual or family particulars from the Population Register or Local Register of Indian Citizens, to the District Registrar, the Sub-district or Taluk Registrar and the Local Registrar of Citizen Registration.

17.

Penal consequences in certain cases. - Any violation of provisions of rules 5, 7, 8, 10, 11 and 14 shall be punishable with fine which may extend to one thousand rupees.

18.

Guidelines for collection of particulars of individuals, verification, issue of National Identity Cards, etc. - The Registrar General of Citizen Registration may, in consultation with the Central Government, issue from time to time such guidelines to the State Governments as are considered necessary for implementation of these rules.

[Schedule]

[See rule 4A (4)]

Special Provisions as to Manner of Preparation of National Register of Indian Citizen in State of Assam

1. Definition. - (1) In this Schedule, unless the context otherwise requires, -

(a)

"National Register of Citizens 1951" means the Register containing details of Indian citizens residing in the State of Assam, as mentioned in the National Register of Citizens which was prepared along with 1951 census under a directive of the Ministry of Home Affairs;

(b)

["electoral rolls upto the midnight of the 24th day of March, 1971" means the electoral rolls containing details of voters prepared by the Election Commission of India or the State Election Commission of the State of Assam in a relevant period upto the midnight of the 24th day of March, 1971.]

[Substituted by Notification No. 207(E), dated 23.3.2010 (w.e.f. 10.12.2003).]

(2)

All other words and expressions used herein and not defined but defined in rule 2 of these rules, shall have the meanings, respectively, assigned to them in that rule.

2. Manner of preparation of draft National Register of Indian Citizen in State of Assam - (1)(a) The District Magistrate shall cause to be published the copies of the National Register of Citizens 1951 and [electoral rolls upto the midnight of the 24th day of March, 1971]

[Substituted 'electoral rolls prior to the year 1971' by Notification No. 207(E), dated 23.3.2010 (w.e.f. 10.12.2003).]

, as available, in sufficient numbers and publish it and send the same to the Local Register of Citizen Registration for wide circulation and public inspection in each village and ward.

(b)

The Local Registrar of Citizen Registration shall select centrally located public places for display of the records and for issue and receipt of the application forms.

(c)

The Local Registrar of Citizens Registration shall be the custodian of the records in the area under his jurisdiction and shall be responsible for its display during the office hours.

(2)

The Local Registrar of Citizen Registration shall receive the filled up application forms, at the same place where the applications are issued, and issue the receipt thereof to the applicant.

(3)

The Local Registrar of Citizen Registration, after the receipt of the application under sub-paragraph (3) shall scrutinize the applications and after its verification, prepare a consolidated list thereof which shall contain the names of the following persons, namely :-

(a)

persons whose names appear in any of the [electoral rolls upto the midnight of the 24th day of March, 1971]

[Substituted 'electoral rolls prior to the year 1971' by Notification No. 207(E), dated 23.3.2010 (w.e.f. 10.12.2003).]

or in National Register of Citizens, 1951;

(b)

descendants of the persons mentioned in clause (a) above.

3. Scrutiny of applications. - (1) The scrutiny of applications received under sub-paragraph (3) of paragraph 2 shall be made by comparing the information stated in the application form with the official records and the persons, of whom the information is found in order, shall be eligible for inclusion of their names in the consolidated list.

(2)

The names of persons who have been declared as illegal migrants or foreigners by the competent authority shall not be included in the consolidated list :

Provided that the names of persons who came in the State of Assam after 1966 and before the 25th March, 1971 and registered themselves with the Foreigner Registration Regional Officer and who have not been declared as illegal migrants or foreigners by the competent authority shall be eligible to be included in the consolidated list;

(3)

The names of persons who are originally inhabitants of the State of Assam and their children and descendants, who are Citizenship of such persons in ascertained beyond reasonable doubt and to the satisfaction of the registering authority;

(4)

The Local Registrar of Citizens Registration may, in case of any doubt in respect of parental linkage or any particular mentioned in the application received under sub-paragraph (3) of paragraph 2, refer the matter to the District Magistrate for investigation and his decision and Local Registrar of Citizens Registration shall also inform the same to the individual or the family;

(5)

[The Local Registrar of Citizens Registration may, in respect of a person who—

[Substituted by Notification No. 207(E), dated 23.3.2010 (w.e.f. 10.12.2003).]

(a)

was residing in a place other than the State of Assam upto the midnight of the 24th day of March, 1971; or

(b)

has shifted from one district to another within the State of Assam up to the midnight of the 24th day of March, 1971, verify information relating to such person through inter-state correspondence, or, as the case may be, through inter-district correspondence.]

4. Publication of consolidated list. - (1) The Local Registrar of Citizen Registration shall, after completion of scrutiny of all applications, prepare the consolidated list village and ward wise and authenticate each entry in the list.

(2)

The District Magistrate, shall cause to publish the consolidated list, prepared and authenticated under sub-paragraph (1), as draft of the National Registrar of Indian Citizens in the State of Assam, and cause to publish a public notice with regard to publication of the draft National Register of Indian Citizens in the State of Assam in the local news paper having wide circulation in the village and ward inviting objections and suggestion on it.

(3)

The Local Registrar of Citizen Registration may at any time before the final publication of the National Register of Indian Citizens in the State of Assam may cause or direct to cause verification or names of such persons considered necessary.

(4)

The Local Registrar of Citizen Registration shall take special care in attending the instances of allegation of undue harassment, if brought to their notice during the conduct of verification and take necessary action as he may consider appropriate.

(5)

The report of the verification shall be examined by the District Registrar of Citizen Registration.

(6)

The District Registrar of Citizen Registration shall take special care in attending the instances of allegation of undue harassment, if brought to their notice during the conduct of verification and take necessary action as he may consider appropriate.

5. Publication of additional list. - After the decision of the District Registrar of Citizens Registration under sub-paragraph (6) of paragraph 4, the additional list, if any, to the draft National Register of Indian Citizens shall be published in the

manner specified under paragraph 2.

6. Claims and objection. - (1) Any person may -

(a)

Whose names do not appear in the draft National Register of Indian Citizens published under paragraph 2 or in the additional list published under paragraph 4, file his claim, along with necessary documents in support of thereof; or

(b)

Object to inclusion of any name in the draft National Register of Indian Citizens published under paragraph 2 or in the additional list published under paragraph 4.

[within a period of thirty days after the expiry of thirty days from the date of publication of the draft National Register of Indian Citizens, before the Local Registrar of Citizen Registration:

[Substituted 'Within a period of thirty days from the date of such publication, before the Local Registrar of Citizen Registration.' by Notification No. G.S.R. 722(E), dated 30.7.2018 (w.e.f. 10.12.2003).]

Provided that the Registrar General of Citizen Registration with the approval of the Central Government may extend the period of thirty days for receipt of claims and objections from the public, for a further period of a maximum of thirty days, if he is of the opinion that the period of thirty days is not sufficient for submitting the claims or objections, as the case may be,]

(2)

The Local Registrar of Citizen Registration shall maintain the list of claims received under clause (a) of sub-paragraph (1) and the objection received under clause (b) of sub-paragraph (1) in separate registers in chronological order;

(3)

[The Local Registrar of Citizen Registration shall, give a notice to every person, who has filed his claim or objection under sub-paragraph (1), to file documents, if any, in support of his claim or objection and after giving the reasonable opportunity of hearing the applicant or the objector, as the case may be, the District Registrar of Citizen Registration shall dispose of the claim or objection, as the case may be.]

[Substituted by Notification No. G.S.R. 722(E), dated 30.7.2018 (w.e.f. 10.12.2003).]

7. Publication of supplementary list. - The Local Registrar of Citizen Registration shall, after the disposal of claims and the objections under sub-paragraph (3) of paragraph 6, prepare and publish a supplementary list for inclusion or deletion of names, as the case may be, and thereafter, the Registrar General of Citizens Registration shall publish the final National Register of Indian Citizens in the State of Assam.

8. Appeal. - Any person, not satisfied with the outcome of the decisions of the claims and objections under paragraph 7, may prefer appeal, before the designated Tribunal constituted under the Foreigners(Tribunals) Order, 1964 within a period of [One hundred and twenty days]

[Substituted 'sixty days' by Notification No. G.S.R. 586(E), dated 21.8.2019.]

from the date of such order; and on the disposal of appeal by the Tribunals the names shall be included or deleted, as the case may be, in the National Register of Indian Citizens in the State of Assam.

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